IN THE COURT OF APPEALS OF THE STATE OF NEW MEXICO

Plaintiffs-Appellees,
REPUBLICAN PARTY OF NEW MEXICO, DAVID GALLEGOS, TIMOTHY JENNINGS, DINAH VARGAS, MANUEL GONZALES, JR. BOBBY and DEE ANN KIMBRO, and PEARL GARCIA,

v.

Defendants-Appellants,
MICHELLE LUJAN GRISHAM in her official capacity as Governor of New Mexico, HOWIE MORALES in his official capacity as New Mexico Lieutenant Governor and President of the New Mexico Senate, MIMI STEWART, in her official capacity as President Pro Tempore of the New Mexico Senate, and BRIAN EGOLF, in his official capacity as Speaker of the New Mexico House of Representatives,

and

Defendant.
MAGGIE TOULOUSE OLIVER, in her official capacity as New Mexico Secretary of State,

No.

Directed To: The Fifth Judicial District, County of Lea
Honorable Fred Van Soelen, District Judge
District Ct. No. D-506-CV-2022-00041

PETITION FOR WRIT OF ERROR

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I. NATURE OF THE CASE, SUMMARY OF PROCEEDINGS, DISPOSITION, AND RELEVANT FACTS

Defendants-Appellants Michelle Lujan Grisham, Governor of New Mexico, Howie Morales, Lieutenant Governor of New Mexico (together the "Executive Defendants"), Mimi Stewart, President Pro-Tempore of the New Mexico Senate, and Brian Egolf, Speaker of the New Mexico House of Representatives (together the "Legislative Defendants"), in accordance with the requirements of Rule 12-503 NMRA 2022 submit the following Petition for Writ of Error to the District Court.[1] Jurisdiction is conferred on this Court by N.M. Const. art VI, § 29 and Rule 12-503(B).

1. On December 17, 2021, the Governor signed Senate Bill 1 (SB 1) into law (codified at NMSA 1978, § 1-15-16 (2021)), establishing new boundaries for New Mexico's three congressional districts which the Legislature had adopted following a special legislative session devoted primarily to redistricting.

2. Plaintiffs-Appellees filed suit on January 21, 2022, challenging the redrawn boundaries of the congressional districts asking the district court to declare that the boundaries of the congressional districts violate the Equal

[1] Important Notice: Simultaneously with the filing of the Petition in this Court, Appellants have filed a Petition for a Writ of Superintending Control under Rule 12-504 with the Supreme Court, seeking the same relief. Filing both petitions leaves open the opportunity should the high Court wish to have the views of this Court before its possible final resolution of the significant legal questions presented herein. A copy of that petition is attached as Exhibit E.

Protection Clause of the New Mexico Constitution and to impose different boundaries. Plaintiffs' theory was not based upon established federal constitutional and statutory principles. Thus, they do not claim that the districts were comprised of unequal populations or that protected disadvantaged classes were not appropriately protected. Rather Plaintiffs' claim is that as Republicans their equal protection rights under New Mexico's constitution were violated when, by virtue of the new lines drawn for Congressional District 2 (CD-2), they were disadvantaged in their ability to elect one of their own to Congress—i.e., that they have been subjected to political gerrymandering which is allegedly precluded by New Mexico equal protection principles.

3. In addition, Plaintiffs filed a Motion for Preliminary Injunction, seeking the set aside of the newly adopted boundaries and the adoption of an alternative congressional map for the 2022 election year.

4. Defendants-Appellants opposed the Motion for Preliminary Injunction and filed two motions to dismiss asserting that New Mexico does not recognize a cause of action for political, or partisan, gerrymandering.

5. After full briefing by the parties and a hearing on both motions the district

court issued separate letter rulings denying each.[2]

6. The denial of Defendants-Appellants' motions to dismiss, which is the subject of this Petition, is contained in the district court's Letter Ruling of April 19, 2022, attached hereto as Exhibit A, as further elaborated in its Order entered on July 11, 2022. See Order Denying Legislative Defendants' and Executive Defendants' Motion to Dismiss, attached hereto as Exhibit B.

7. The district court recognized that New Mexico's Equal Protection Clause mirrors that of the Fourteenth Amendment of the U.S. Constitution, and that by applying New Mexico's interstitial approach to constitutional interpretation, "the [State's Equal Protection Clause] will only provide broader protections than the [Federal Equal Protection Clause] if the federal approach is unpersuasive because it is flawed or undeveloped." Ex. B, ¶ 2.

8. The court went on to explain that:

> [b]oth sides cite *Rucho v. Common Cause*, 139 S.Ct. 2484 (2019), which decided that political gerrymandering claims are non-justiciable at the federal level, as there was no consensus as to a standard to apply to political gerrymandering and "how much is too much." But *Rucho* also said that this did not foreclose possible court action at the

[2] The trial court made clear that "[t]o require a change this late in the game would bring a level of chaos to the process that is not in the public's or the candidate's interest." Letter Ruling on Preliminary Injunction, attached hereto as Exhibit C at 1-2, further elaborated in the court's Findings of Fact and Conclusions of Law of July 11, 2022, attached hereto as Exhibit D. The result is that the 2022 election with respect to the congressional districts will take place under the plan enacted into law. See Ex. C at 2.

state level where constitutional or statutory grounds may be available to address the issue. Ex. B, ¶ 4.

9. Accepting the facts of Plaintiffs' complaint, the district court viewed it as presenting a well-developed case that SB 1 is an unlawful political gerrymander that dilutes Republican votes on the basis of the traditional districting principles in *Maestas v. Hall*, 2012-NMSC-006, 274 P.3d 66, and the guidelines in the New Mexico Redistricting Act, § 1-3A-1, et. seq. NMSA 1978, giving rise to Plaintiffs equal protection claim Ex. B, ¶ 6.

10. The district court acknowledged Defendants' claim that *Maestas* and the Redistricting Act do not apply to redistricting maps adopted by the Legislature and signed by the Governor, because *Maestas* applies only to court-drawn maps, and the Redistricting Act requirements are not binding on the Legislature, but rather serve only as a recommendation.[3] *Id.*, ¶ 9.

11. With respect to the Defendants' further argument that New Mexico's Equal Protection Clause is the same as its federal analogue, citing *Vasquez v. Wal-Mart Stores, Inc.*, 1998-NMCA-030, 124 N.M. 655, the district court noted that, although *Vasquez* may have said that both federal and state Equal Protection Clauses offer the same level of protection, the court could not say that *Vasquez*

[3] The Redistricting Act directs that "When proposing or adopting district plans, the committee shall not: use, rely upon or reference partisan data [other than required by federal law]:" § 1-3A-7(C)(1) (emphasis added).

definitively answers the questions in this case. Ex. B, ¶ 7. The district court recognized that this is an "undeveloped area of political gerrymandering as an equal protection claim," Ex. A at 2,[4] noting that Plaintiffs cited to *Harper v. Hall*, 2022-NCSC-17, 380 N.C. 317, 868 S.E.2d 499 (2022), a North Carolina case which found equal protection violations (among other violations) in a partisan redistricting map. Ex. B, ¶ 7.

II. STATEMENTS CONCERNING THE ORDER SOUGHT TO BE REVIEWED

12. Question Presented was Conclusively Determined: On the basis of the foregoing, the district court concluded that the court has jurisdiction, and the complaint states a claim upon which relief could be granted. *Id.* ¶ 8.

13. In denying the Defendants-Appellants' motions to dismiss the district court expressly ruled that the New Mexico Constitution provides a remedy for claims of discriminatory partisan gerrymandering and that partisan gerrymandering is a justiciable issue. *See* Exh. B, ¶ 9.[5]

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[4] Defendants-Appellants therefore requested that the district court include the specific finding on the need for interlocutory review as provided in NMSA 1978, § 39-3-4. The court's final Order did not include that language, precluding Defendants-Appellants from petitioning this Court for interlocutory appeal.

[5] Even if this Court were to determine the claim justiciable, this Court would be required to determine what standards should be applied in resolving the claim on the merits.

14. Importance of the Issue Separate from the Merits: Determination of whether there is a claim under New Mexico's Equal Protection Clause for alleged excessive partisan gerrymandering, and if so, what standards are to guide a court in making that determination are of critical importance—and matters which must be finally determined before confronting the merits of the case which remains pending in the district court. The narrow holding of *Rucho*, 139 S. Ct. 2484, governs the jurisdiction of federal courts. Nonetheless, an understanding of its underlying rationale is important and useful to the resolution of this case.

15. As the *Rucho* Court made clear "[t]he "central problem" for the judiciary becomes one of degree: how to reliably differentiate between constitutional political gerrymandering and when a redistricting map's partisan dominance is too far or too much. *Rucho*, 139 S. Ct. at 2497, 2499 (quoting *Vieth v. Jubelirer*, 541 U.S. 267, 296 (2004) and *League of United Latin American Citizens v. Perry*, 548 U.S. 399, 420 (2006)). *Rucho* follows Justice Kennedy's caution in *Vieth* against adopting standards which would not only invite but "commit federal and state courts to unprecedented intervention in the American political process." *Id.* at 2498 (quoting *Vieth*, 541 U.S. at 306).

16. What occurred in *Rucho* also occurred here, where Plaintiffs assert that a districting map is alleged to be unconstitutional because it makes it too difficult for one party to translate statewide support into seats in the legislature (or in this case

in Congress). Such a claim is based on a "norm that does not exist" in our electoral system either federal or state. *Id.* at 2499 (quoting *Davis v. Bandemer* 478 U.S. 109, 159 (1986) (opinion of O'Connor, J.). The U.S. Supreme Court has dismissed this argument and the attendant unmanageable standards directly, whether cloaked as "fairness" or otherwise. *Rucho*, 139 S. Ct. at 2499-2500.

17. Plaintiffs, just as in *Rucho*, ask the court to insert its own political judgment as to the amount of representation a particular political party deserves. No guidelines equip this Court to do so, nor do constitutional provisions grant such authority. Because "judicial action must be governed by standard, by rule," and by "principled, rational, and based upon reasoned distinctions" grounded in the law, *Vieth*, 541 U.S. at 278, 279 (plurality opinion), Plaintiffs' request for judicial review of partisan gerrymandering, without enunciating a workable standard, fails. Were this Court to engage in such an unprecedented and novel expansion of judicial power—not only into one of the most intensely partisan aspects of American political life, but also unlimited in scope and duration, repeating with each new census—it would flout the prior wisdom and judicial restraint espoused in *Eturriaga v. Valdez*, 1989-NMSC-080, ¶ 17, 109 N.M. 205, 209 (advising where conflict arises between legislative and judicial branches, "[i]t is not the province of this Court to invalidate substantive policy choices made by the legislature.") and *Maestas*, 2012-NMSC-006, ¶ 27 (cautioning against courts wading into the

"political thicket" of redistricting unless the executive and legislative branches fail to agree on a new map).

18. Finally, in following the federal analysis of *Rucho*, specific provisions in state statutes or constitutions could provide Plaintiffs' sought-after standards. Indeed, numerous other States have done so through legislative enactment or constitutional referendum.[6] New Mexico has yet to join their ranks. The district court's vague citation to "traditional redistricting principles" employed in court-drawn maps under *Maestas*, 2012-NMSC-006, § 34, or by the independent

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[6] *See Rucho*, 139 S. Ct. at 2507 ("Provisions in state statutes and state constitutions can provide standards and guidance for state courts to apply."); *see also id.* at 2507-08, noting the following states' constitutional and statutory prohibitions against partisanship in redistricting: Florida's Fair Districts Amendment to the Florida Constitution, Fla. Const., art. III, § 20(a) ("No apportionment plan or individual district shall be drawn with the intent to favor or disfavor a political party or an incumbent."); Mo. Const., art. III, § 3 ("Districts shall be designed in a manner that achieves both partisan fairness and, secondarily, competitiveness. 'Partisan fairness' means that parties shall be able to translate their popular support into legislative representation with approximately equal efficiency."); Iowa Code § 42.4(5) (2016) ("No district shall be drawn for the purpose of favoring a political party, incumbent legislator or member of Congress, or other person or group."); Del. Code Ann., Tit. xxix, § 804 (2017) (providing that in determining district boundaries for the state legislature, no district shall "be created so as to unduly favor any person or political party"). *See also* Ohio Const. art. XI, § 6(A) ("No general assembly district plan shall be drawn primarily to favor or disfavor a political party.") and Article XIX, Section 1(C)(3)(a) ("The general assembly shall not pass a plan that unduly favors or disfavors a political party or its incumbents."); *But see Rucho*, 139 S.Ct. at 2524, n.6 (Kagan, J, dissenting) (commenting that "state courts do not typically have more specific 'standards and guidance' to apply to electoral redistricting," and noting that few states have constitutional provisions like Florida which expressly address political parties).

Citizens Redistricting Committee under the Redistricting Act, NMSA 1978, § 1-3A-7(A), addresses the wrong audience. Ex. B, ¶ 6. The audience is the Legislature, elected by the people of this state: Not the courts, as in *Maestas*, and not a Committee unaccountable to the people. Therefore, in the utter absence of specific Constitutional or statutory standards controlling the Legislature or precedent expanding the reach New Mexico's Equal Protection Clause to partisan redistricting, Respondent-Plaintiffs' case must be dismissed as nonjusticiable for lack of jurisdiction and failure to state a claim.

19. Appeal From a Final Judgment Would Be an Inadequate and Grossly Inefficient Remedy: If Defendants-Appellants' succeed in their appellate challenge to the district court order it would obviate the need for a trial on the merits and result in a dismissal of Plaintiffs' case on the merits. If Defendants-Appellants do not obtain dismissal, the appellate court would still be required to direct how the claim on the merits is to be litigated in the first instance. *See generally Maestas*, 2012-NMSC-006 (providing guidance to the district court for court-drawn maps only). Thus, efficiency and concern for judicial economy requires final judicial resolution of the issue presented here before not after any possible resolution of the merits.

20. Other Matters Relevant to This Court's Exercise of Its Discretion Including an Appropriate Stay of Proceedings in the District Court: As the district

court made clear in its Letter Ruling on the denial of Plaintiffs' Motion for Preliminary Injunction, the current 2022 congressional election will proceed under the law passed during the last session of the Legislature. As a result, the appellate courts are relieved of the pressure for an immediate result found in many redistricting cases. Here there is sufficient time for careful appellate resolution of the issues which will also allow for a more efficient and expeditious resolution of the case on the merits should such a trial be necessary. If this Petition is granted Defendants-Appellants fully intend, following the directive in Rule 12-503(M), to seek a stay of proceedings below until this matter is resolved in the appellate courts, and will so alert the trial court of that intention at the scheduling hearing currently set by the district court for July 28, 2022.

WHEREFORE, the Defendants-Appellants respectfully request that this Court grant this Petition for a Writ of Error, consider an appropriate stay of proceedings below, and assign the case to its appropriate calendar for resolution, and for such other and further relief as the Court deems just and proper.

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STATEMENT OF COMPLIANCE

I certify that this brief complies with the type-volume limitation of Rule 12-503(F) NMRA. According to Microsoft Word 2013, the body of this brief, as defined by Rule 12-503(F)(1) NMRA, contains 2415 words.

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CERTIFICATE OF SERVICE

I hereby certify that on July 22, 2022, I caused the foregoing Verified Petition along with this Certificate of Service, to be served and filed electronically through the Tyler Technologies Odyssey File & Serve electronic filing system, which caused all parties or counsel of record to be served by electronic means, as more fully reflected on the Notice of Electronic Filing.

Additionally, a copy was emailed to The Honorable Fred Van Soelen at cloddiv3criminalproposedtxt@nmcourts.gov, and mailed via Certified Return Receipt to: The Honorable Fred Van Soelen, Curry County Courthouse, 700 N. Main St., Suite 3, Clovis, NM 88101.

s/ HINKLE SHANOR LLP